

The Tamil Nadu Gift Goods (Unlawful Possession) Act, 1961

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State of Tamilnadu- Act

The Tamil Nadu Gift Goods (Unlawful Possession) Act, 1961

TAMILNADU

India

The Tamil Nadu Gift Goods (Unlawful Possession) Act, 1961

Act 49 of 1961

Published in Gazette 49 on 17 January 1962

Assented to on 17 January 1962

Commenced on 17 January 1962

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The Tamil Nadu Gift Goods (Unlawful Possession) Act, 1961

[17th January, 1962]

Act No. 49 of 1961

An Act to provide for the punishment of the offence of unlawful possession of gift goods supplied by certain relief organisations.

WHEREAS it is expedient to provide for the punishment of the offence of unlawful possession of gift goods supplied by certain relief organizations;

BE it enacted in the Twelfth Year of the Republic of India as follows:?

1.

Short title, extent and commencement.?

(1)

This Act may be called The Tamil Nadu Gift Goods (Unlawful Possession) Act, 1961.

(2)

It extends to the whole of the State of Tamil Nadu.

(3)

It shall come into force at once.

2.

Definitions.?

In this Act, unless the context otherwise requires,?

(1)

"gift goods" means any of the following goods, namely:-

(a)

cornmeal;

(b)

milk powder;

(c)

vegetable oil (soya bean oil or sunflower seed oil);

(d)

any other goods which the State Government may, by notification, from time to time, specify;

(2)

"relief organization" means any organization specified in the schedule appended to this Act.

3.

Unlawful possession of gift goods.?

If any person is found, or is proved to have been, in possession of any gift goods reasonably suspected of being stolen or unlawfully obtained, and cannot account satisfactorily how he came by the same, he shall be punished with imprisonment, for a term which may extend to two years, or with fine, or with both.

4.

Offences under the Act to be cognizable.?

(1)

Notwithstanding anything contained in the Code of Criminal Procedure, 1898 (Central Act 5 of 1898), any offence under this Act shall be deemed to be a cognizable offence within the meaning of that Code.

(2)

No Court below that of a Presidency Magistrate or of a Magistrate of the First Class shall try any offence under this Act.

5.

Power to amend Schedule.?

The State Government may, by notification, add any organisation, or omit any organisation from, the Schedule ; and on the publication of such notification, such organisation shall be deemed to be included in, or as the case may be, omitted from, the Schedule.

6.

Notifications to be placed before the Legislature.?

[See Section 2(2)]

(1)

United Nations International Children Emergency Fund (UNICEF).

(2)

Co-operative for American Belief Everywhere (CARE).

(3)

Church World Service.

(4)

Lutheran World Belief.

(5)

Catholic Belief Service.

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